

SENATE No. 2289

The Commonwealth of Massachusetts

PRESENTED BY:

Adam Gómez

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to expand the low income home energy assistance program.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Adam Gómez</i>	<i>Hampden</i>	
<i>Homar Gómez</i>	<i>2nd Hampshire</i>	<i>1/17/2025</i>
<i>Mark C. Montigny</i>	<i>Second Bristol and Plymouth</i>	<i>2/1/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>10/7/2025</i>

SENATE No. 2289

By Mr. Gomez, a petition (accompanied by bill, Senate, No. 2289) of Adam Gomez, Homar Gómez and Mark C. Montigny for legislation to expand the low income home energy assistance program. Telecommunications, Utilities and Energy.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2134 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to expand the low income home energy assistance program.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 23B of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by adding after section 24B the following new section:-

3 Section 24C. (a) The undersecretary of the Department of Housing and Community
4 Development shall operate a low-income cooling assistance program in accordance with the
5 Low-Income Home Energy Assistance Act, 42 United States Code sections 8621 through 8630,
6 to cover the cost of an eligible household purchasing and installing an air-conditioning unit
7 and/or ceiling fans and/or box fan(s) up to \$500 total as well as contribute funds to electric bills
8 if these funds are used to assist with cooling/air-conditioning during the appropriate times of the
9 year. To be eligible for the program, a household shall meet the following conditions: (i)
10 household income does not exceed 60 percent of state median income; (ii) the applicant is the

homeowner or the applicant provides a written statement from the landlord allowing the installation of a window air-conditioning unit; provided, that no such written statement shall be required for a box fan.

(b) Each fiscal year, the department shall dedicate at least 10 percent of the funds allocated for the purposes of the Low Income Home Energy Assistance Program to the program established in this section. These funds will be distributed to all geographic regions in the commonwealth and priority will be given to underserved communities/disproportionately impacted areas based on income, housing infrastructure and density, and climate.

(c) The undersecretary of the Department of Housing and Community Development shall submit an annual report to the joint committee on housing and the house and senate committees on ways and means summarizing the activities of the program, including, but not limited to, the number of applicants for the program, the number of accepted applications, a list of participating retailers, a list of entities that assist the department in administering the program, the total number of air-conditioning units and box fans distributed under the program, and the costs of the program.

SECTION 2. Section 124F of Chapter 164 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by replacing the paragraph with the following:-

No gas or electric company shall shut off gas or electric service to any residential customer who cannot pay an overdue charge because of financial hardship. The department may promulgate such rules and regulations consistent with this section as it deems reasonable and necessary to implement the provision of this section.